

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF RECHENKO AND OTHERS v. RUSSIA

(Applications nos. 13359/19 and 36 others –
see appended list)

JUDGMENT

STRASBOURG

25 May 2023

This judgment is final but it may be subject to editorial revision.



In the case of Rechenko and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 4 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of country-wide protests against retirement age hike organised by Aleksey Navalnyy on 9 September 2018. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences ("the CAO"); *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect on an appeal against the sentence of detention; *Schatschaschwili v. Germany* [GC], no. 9154/10, §§ 100-31, ECHR 2015, and *Murtazaliyeva v. Russia* [GC], no. 36658/05, §§ 150-59, 18 December 2018, relating to impossibility to question witnesses in a criminal trial (see the appended table).

V. REMAINING COMPLAINTS

14. Some applicants also raised other complaints under Articles 5 and 6 of the Convention concerning various aspects of their deprivation of liberty and fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

15. The Court has further examined the rest of the complaints raised by the applicants and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need to examine separately the remaining complaints under Articles 5 and 6 of the Convention, and *declares* the remainder of the applications inadmissible;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 25 May 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	13359/19 25/02/2019	**Boris Nikolayevich RECHENKO** 1994	Bushmakov Aleksey Vladimirovich Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 14/11/2018	Art. 5 (1) – unlawful deprivation of liberty – escorting to a police station for compiling an offence report (brought to the police station at 2.15 p.m. and released at 2.50 p.m. on 09/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
2.	14920/19 27/02/2019	**Dmitriy Aleksandrovich KUTLENKOV** 2000	Mikhaylova Polina Pavlovna Tyumen	St Petersburg	Article 20.2 § 6.1 of CAO	detention for 10 days	St Petersburg City Court 18/09/2018	Art. 5 (1) - unlawful deprivation of liberty – detention at a police station in excess of three hours after the offence report was compiled (arrested at 5.45 p.m. and brought to police station at 6.10 p.m. on 09/09/2018, released at 10.40 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	15637/19 12/03/2019	**Anastasiya Ivanovna KADETOVA (former SEMENOVA)** 1998	Vorobyev Viktor Viktorovich Syktyvkar	Volgograd	Article 20.2 § 8 of CAO	detention for 15 days	Volgograd Regional Court 12/09/2018	Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance on 09/09/2018 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
4.	20104/19 01/04/2019	**Aleksandr Akeksandrovich NALIMOV** 1987	Zubarev Dmitriy Vladimirovich Vladivostok	Vladivostok	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 17/10/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
5.	21598/19 01/04/2019	**Aleksandra Sergeyevna KORCHAGINA** 2000		St Petersburg	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 09/10/2018	Art. 5 (1) - unlawful deprivation of liberty – detention at a police station in excess of three hours after the offence report was compiled (arrested at 5.05 p.m. and brought to the police station at 6.30 p.m. on 09/09/2018, released at 2.54 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	22606/19 07/04/2019	**Sergey Sergeyevich SAVINOV** 1989	Belozerov Aleksey Sergeyevich St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	St Petersburg City Court 01/11/2018	Art. 5 (1) - unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 6.20 p.m. and brought to the police station at 10.50 p.m. on 09/09/2018, released at 3 p.m. on 10/09/2018);	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	
7.	24398/19 29/04/2019	**Yevgeniy Stanislavovich TALANKIN** 1991	Tiunov Sergey Yuryevich Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 16/01/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested and brought to the police station at 4.40 p.m. on 09/09/2018, released at 12.02 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
8.	24818/19 20/04/2019	**Anton Aleksandrovich ROMANYUK** 1982	Mikhaylova Varvara Dmitriyevna St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	detention for 4 days	St Petersburg City Court 01/11/2018	Art. 5 (1) - unlawful deprivation of liberty – detention at a police station in excess of three hours after the offence report was compiled (arrested at 6.05 p.m. and brought to the police station on 09/09/2018, released at 2.30 p.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
9.	29920/19 11/05/2019	**Artem Aleksandrovich SAVASTEYEV** 1994	Olenichev Maksim Vladimirovich St Petersburg	St Petersburg	Article 20.2 § 6.1 of CAO	20 hours of community work	St Petersburg City Court 18/10/2018 (the applicant was not informed of the final hearing in his case, was not served with a copy of	Art. 5 (1) - unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 3.20 p.m. and brought to the police station at 5.15 p.m. on	4,000

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							the appeal decision and only learned about the appeal decision on 14/03/2019, as confirmed by the case-file materials)	09/09/2018, released at 6.05 p.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	
10.	30078/19 28/05/2019	**Yuriy Yuryevich SHAPOSHNIKOV** 1987	Karavayev Aleksandr Yevgenyevich Nizhniy Novgorod	Nizhniy Novgorod	Article 20.2 § 3 of CAO	detention for 12 days	Nizhniy Novgorod Regional Court 29/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
11.	30260/19 21/05/2019	**Roman Viktorovich DOLMATOV** 1971	Shchukin Andrey Yevgenyevcich Nizhniy Tagil	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 22/11/2018	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 4.20 p.m., brought to the police station at 8.45 p.m. and released at 11 p.m. on 09/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
12.	31381/19 27/05/2019	**Nikita Sergeyevich VELTISHCHEV** 1993	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Nizhniy Novgorod	Article 20.2 § 6.1 of CAO	40 hours of community work	Nizhniy Novgorod Regional Court 29/11/2018		3,500
13.	31462/19 27/05/2019	**Sergey Yuryevich FIGUROV** 2000	Sozonov Ruslan Vladimirovich Nizhniy Novgorod	Nizhniy Novgorod	Article 20.2 § 6.1 of CAO	60 hours of community work	Nizhniy Novgorod Regional Court 06/12/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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14.	32349/19 29/05/2019	**Svetlana Valeryevna BEKMANSUROVA** 1991	Koroleva Galina Vasilyevna Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 25/12/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
15.	33446/19 11/06/2019	**Yevgeniy Georgiyevich TIPIKIN** 1987	Koroleva Galina Vasilyevna Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 05/03/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to a police station for compiling an offence report (arrested at 3.50 p.m., brought to the police station at 4.40 p.m. and released at 11.54 p.m. on 09/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
16.	33511/19 11/06/2019	**Dmitriy Igorevich REZNICHENKO** 1990	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Komsomolsk-on-Amur	Article 20.2 § 1 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 12/12/2018	Art. 5 (1) – unlawful deprivation of liberty – escorting to a police station for compiling an offence report (arrested and brought to the police station at 2.10 p.m. and released after 7 p.m. on 09/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
17.	34626/19 17/06/2019	**Sergey Yegorovich PFAYFER** 1969	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Novosibirsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Novosibirsk Regional Court 18/12/2018		3,500

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18.	35098/19 20/06/2019	**Mikhail Fedorovich ABAKUMOV** 1963	Koroleva Galina Vasilyevna Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 15/01/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to a police station for compiling an offence report (arrested at 3 p.m. and brought to the police station at 6.20 p.m. on 09/09/2018; released at 2.40 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
19.	37430/19 01/07/2019	**Andrey Dmitriyevich MEDVEDSKIY** 1991		Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 16/01/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to a police station for compiling an offence report (arrested at 4.30 p.m. and brought to the police station at 6.20 p.m. on 09/09/2018; released at 2.30 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
20.	40133/19 19/07/2019	**Aleksey Aleksandrovich KOLYADA** 1983	Pomazuyev Aleksandr Yevgenyevich Vilnius	Krasnoyarsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 31/01/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
21.	43312/19 02/06/2019	**Aleksey Viktorovich NEMTSEV** 1987	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Novosibirsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Novosibirsk Regional Court 22/01/2019		3,500

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22.	43948/19 02/08/2019	**Nikolay Vladimirovich PETUKHOV** 1991	Pomazuyev Aleksandr Yevgenyevich Vilnius	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 06/02/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to a police station for compiling an offence report (arrested at 5 p.m. and brought to the police station at 6.20 p.m., released at 10.40 p.m. on 09/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
23.	44374/19 13/08/2019	**Makar Viktorovich ALISOV** 2000	Pomazuyev Aleksandr Yevgenyevich Vilnius	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 13/02/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to a police station for compiling an offence report (arrested at 4.20 p.m. and brought to the police station at 4.40 p.m., released at 9.34 p.m. on 09/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
24.	44375/19 01/08/2019	**Venzhik Ravilyevich GAFIULLIN** 1987	Koroleva Galina Vasilyevna Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 20/02/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to a police station for compiling an offence report (arrested at 3.30 p.m. and brought to the police station at 6.30 p.m. on 09/09/2018; released at 2 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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25.	44401/19 07/08/2019	**Yevgeniy Borisovich SMIRNOV** 1993	Pomazuyev Aleksandr Yevgenyevich Vilnius	St Petersburg	Article 20.2 § 8 of CAO	fine of RUB 150,000	St Petersburg City Court 28/02/2019	Art. 5 (1) - unlawful deprivation of liberty – detention at a police station in excess of three hours after the offence report was compiled (arrested at 2 p.m. and brought to the police station at 2.45 p.m. on 09/09/2018, released at 12.50 p.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	6,000
26.	46815/19 10/08/2019	**Denis Vladislavovich BEKMANSUROV** 1990	Koroleva Galina Vasilyevna Yekaterinburg	Yekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 10/04/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
27.	46953/19 28/08/2019	**Viktoriya Sergeyevna BRAGINA** 2001	Pomazuyev Aleksandr Yevgenyevich Vilnius	Khabarovsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 15/03/2019	Art. 5 (1) - unlawful deprivation of liberty – detention at a police station in excess of three hours after the offence report was compiled (arrested and brought to the police station at 3.40 p.m., released at 6 p.m. on 09/09/2018)	4,000
28.	47060/19 28/08/2019	**Yelena Vladimirovna KOCHKINA** 1988	Pomazuyev Aleksandr Yevgenyevich Vilnius	Perm	Article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 14/03/2019		3,500
29.	47387/19 23/08/2019	**Tatyana Nikolayevna POVALIY** 1977	Pomazuyev Aleksandr Yevgenyevich Vilnius	Belgorod	Article 20.2 § 5 of CAO	30 hours of community work	Belgorod Regional Court 11/02/2019 (received on 18/03/2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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30.	47474/19 28/08/2019	**Liliya Kurtovna OTTO** 1965	Vasin Vladimir Valeryevich Krasnoyarsk	Krasnoyarsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 28/03/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
31.	48304/19 28/08/2019	**Aleksey Yuryevich KLIMISHIN** 1996	Yatsenko Irina Aleksandrovna Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/02/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
32.	49206/19 28/08/2019	**Dmitriy Nikolayevich PLISHKIN** 2000	Pomazuyev Aleksandr Yevgenyevich Vilnius	Perm	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Perm Regional Court 06/03/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
33.	50290/19 09/09/2019	**Sergey Alekseyevich OSOKIN** 1989		Krasnodar	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 30/07/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
34.	51747/19 22/09/2019	**Ivan Albertovich SHCHETININ** 1996	Yelanchik Oleg Aleksandrovich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/03/2019	Art. 6 (1) - and Art. 6 (3) (d) - unfair trial in view of restrictions on the right to examine witnesses – inability to cross-examine in open court any witnesses, including police officers on whose written statements the applicant's conviction was based.	3,500
35.	54204/19 07/10/2019	**Semen Valeryevich TARAKANOV** 1987	Pomazuyev Aleksandr Yevgenyevich Vilnius	Perm	Article 20.2 § 5 of CAO	fine of RUB 15,000	Perm Regional Court	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
36.	62601/19 23/11/2019	**Vyacheslav Aleksandrovich KHLYNOV** 1999	Dubinin Nikolay Anatolyevich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/05/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
37.	64296/19 27/11/2019	**Nikita Aleksandrovich KHRAMOV** 1995	Nisanbekova Elza Rinatovna Kazan	Kazan	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 29/05/2019	Art. 5 (1) – unlawful deprivation of liberty – escorting to a police station for compiling an offence report (arrested at 5 p.m. and brought to the police station at 5.25 p.m. on 09/09/2018; released at 1.35 a.m. on 10/09/2018); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.